

Cotton Ginning and Pressing Factories (Tamil Nadu Amendment) Act, 1948

Source: <https://indiankanoon.org/doc/98565677/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with
PRISM](#)

[AI](#)

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

0

]

State of Tamilnadu- Act

Cotton Ginning and Pressing Factories (Tamil Nadu Amendment) Act, 1948

TAMILNADU

India

Cotton Ginning and Pressing Factories (Tamil Nadu Amendment) Act, 1948

Act 25 of 1948

Published on 4 March 1949

Commenced on 4 March 1949

[This is the version of this document from 4 March 1949.]

[Note: The original publication document is not available and this content could not be verified.]

Cotton Ginning and Pressing Factories (Tamil Nadu Amendment) Act, 1948

(Tamil Nadu Act

25 of 1948

)

Received the assent of the Governor-General on the 4th March 1949 and first published in the Fort. St. George Gazette on the 15th March 1949.

An Act further to amend the Cotton Ginning and Pressing Factories Act, 1925, in its application to the [State of Tamil Nadu]

[This expression teas substituted for the expression 'Province of Madras' by the Tamil Nadu Adaptation of Laws Order,

1970, which was deemed to have come into force on the 14th January 1969.]

Whereas it is expedient further to amend the Cotton Ginning and Pressing Factories Act, 1925, in its application to the [State of Tamil Nadu]

[This expression was substituted for the expression 'Province of Madras' by the Tamil Nadu Adaptation of Laws Order, 1970, which was deemed to have come into force on the 14th January 1969.]

, for the purposes hereinafter appearing; It is hereby enacted as follows:-

1.

Short title, extent and commencement.

(1)

This Act may be called the Cotton Ginning and Pressing Factories [Tamil Nadu]

[These words were substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Amendment) Act 1948.

(2)

It extends to the whole of the [State of Tamil Nadu]

[Now Tamil Nadu Government Gazette.]

(3)

This section shall come into force at once; and the rest of this Act, shall come into force in such areas and on such dates as the [State Government]

[This word was substituted for the word 'Provincial', by the Adaptation Order of 1950.]

may, by notification in the [Fort St. George Gazette]

[Now Tamil Nadu Government Gazette.]

, appoint.

This Act was extended to the Kanyakumari district and the Shencottah taluk of the Tirunelveli district by section 3 of, and the Schedule to, the Tamil Nadu (Transferred Territory) Extension of Laws Act, 1957 (Tamil Nadu Act XXII of 1957).

2.

Amendment of section 2, Central Act XII of 1925.

- In section 2 of the Cotton Ginning and Pressing Factories Act, 1925 (Central Act XII of 1925) (hereinafter referred to as the said Act),-

(i)

clause (a) shall be re-lettered as clause (a-1) and before the clause as so relettered, the following clause shall be inserted, namely:- "(a) 'admixed cotton' means a mixture of different varieties of cotton:

(ii)

in clause (b), the words, "or cotton waste" shall be omitted;

(iii)

after clause (e), the following clause shall be inserted, namely:- "(e-1) 'foreign substance' means a substance other than cotton lint, and includes cotton waste, but does not include cotton leaf or cotton seed;"

(iv)

after clause (f), the following clause shall be inserted, namely:- "(f-1) 'licence' means a licence granted under section 2-A, sub-section (i);"

(v)

after clause (g), the following clause shall be inserted, namely:- "(g-1) 'owner' includes any person authorized to represent the owner."

3.

Insertion of new sections 2-A in Central Act XII of 1925.

- After section 2 of the said Act, the following section shall be inserted, namely:-

"2-A. Licence for working cotton ginning or pressing factory. - (1) No cotton ginning or pressing factory shall be worked without a licence granted to the owner thereof, by such authority, in such form, subject to such conditions, and on payment of such fee, as may be prescribed.

(2)

A licence for which the prescribed fee has been paid shall be refused only on the ground that the owner or person in charge of the factory has been convicted of an offence punishable under this Act.

(3)

A licence shall be suspended or cancelled only on the ground that the owner or person in charge of the factory has been convicted of an offence punishable under this Act.

(4)

Whoever works a cotton ginning or pressing factory,-

(a)

in respect of which no licence has been granted, or the licence granted in respect of which has been suspended or cancelled, or

(b)

in contravention of any of the conditions of the licence granted in respect thereof, shall be punishable with fine which may extend to five hundred rupees, and in the case of a second or subsequent conviction, with fine which may extend to one thousand and five hundred rupees."

4.

Insertion of new sections 3-A to 3-F in Central Act XII of 1925.

- After section 3 of the said Act, the following sections shall be inserted, namely:-

"3-A. Admixed cotton not to be ginned or pressed in notified areas. - (1) The [State]

[This word was substituted for the word 'Provincial' by the Adaptation Order of 1950.]

Government may, by notification in the Fort St. George Gazette, direct that no admixed cotton shall be ginned or pressed in a cotton ginning or pressing factory situated in any specified area.

(2)

Any owner or person in charge of a factory who, in contravention of a notification issued under sub-section (1), gins or presses, or allows to be ginned or pressed in such factory any cotton which he knows or has reason to believe to be admixed cotton, shall be punishable with fine which may extend to one thousand five hundred rupees.

3.

-B. Watered or impure cotton not to be ginned or pressed. - Any owner or person in charge of a cotton ginning or pressing factory who, knowing or having reason to believe that any cotton is watered, or [has been mixed with cotton leaf or cotton seed]

[These words were substituted for the words 'contains cotton leaf or cotton seed in excess of the prescribed proportion' by section 3 of the Tamil Nadu Act X of 1953.]

or contains any foreign substance, gins or presses, or allows to be ginned or pressed, such cotton in the factory, shall be punishable with fine which may extend to one thousand five hundred rupees.

[3-C. Presumptions in certain cases.

[Sections 3-C and 3-D were transposed and re-lettered as sections 3-D and 3-C by section 4 of the Cotton Ginning and Pressing Factories (Tamil Nadu Amendment) Act, 1953 (Tamil Nadu Act X of 1953).]

- (1) (a) For the purposes of [section 3-B] cotton shall not be deemed to be watered unless it contains moisture in excess of the normal quantity.

(b)

The normal quantity of moisture in any given quantity of cotton is the amount of moisture which such cotton may, reasonably, be expected to contain, regard being had to the variety of the cotton, and the place or places at or to which, and the time or times of the year in which, such cotton was picked, collected, stored, conveyed, left, ginned or pressed.

(c)

A certificate given by the prescribed authority as to the normal quantity of moisture in a given quantity of any cotton, and the quantity of moisture which it actually contains shall be evidence of such matters, and shall, until the contrary is proved, be presumed to be correct; and if the latter quantity as specified in the certificate exceeds the former it shall be presumed, until the contrary is proved, that the cotton has been watered.

(2)

(a)

For the purposes of [section 3-B]

[The word, figure and letter 'section 3-B' were substituted for the words, figures and letters 'sections 3-B and 3-C' by the Cotton Ginning and Pressing Factories (Tamil Nadu Amendment) Act, 1953 (Tamil Nadu Act X of 1953).]

, no variety of cotton shall be deemed to be mixed with cotton leaf or cotton seed unless such cotton contains cotton leaf or seed in excess of the quantity prescribed for such variety of cotton.

(b)

A certificate given by the prescribed authority as to the quantity of cotton leaf or seed which a given quantity of any cotton actually contains shall be evidence thereof and shall, until the contrary is proved, be presumed to be correct; and if the quantity specified in the certificate exceeds the limit prescribed under clause (a) for cotton of that variety, it shall be presumed, until the contrary is proved, that the cotton has been mixed with cotton leaf or seed in excess of the limit so prescribed.

3.

-D. Owner not to mix different varieties of cotton or to water, etc., cotton. - Any owner of cotton who knowingly-

(a)

mixes one variety with another variety of cotton, in any areas specified in a notification issued under section 3-A, sub-section (1), or

(b)

waters any ginned cotton which is being, or is intended to be, pressed in a cotton pressing factory, or

(c)

mixes with ginned cotton any foreign substance, cotton leaf or cotton seed, or

(d)

abets, or allows the commission of, any of the acts specified in the foregoing clauses, shall be punishable with fine which may extend to one thousand five hundred rupees.]

3.

-E. Examination of cotton packages or bales. - (1) The [State]

[This word was substituted for the word 'Provincial' by the Adaptation Order of 1950.]

Government or any officer authorised by them in this behalf may-

(a)

suo motu, if such Government or officer has reason to believe that there has been contravention of the provisions of sections 3-A, 3-B or [3-D]

[Sections 3-C and 3-D were transposed and relettered as sections 3-D and 3-C by section 4 of the Cotton Ginning and Pressing Factories (Tamil Nadu Amendment) Act, 1953 (Tamil Nadu Act X of 1953).]

in respect of any cotton or package or bale of cotton, or

(b)

on receipt of a complaint, from any person that there has been such a contravention in respect of any cotton or package or bale of cotton and on payment of the prescribed fee by the complainant, cause such cotton or the contents of such package or bale to be examined by the prescribed authority.

(2)

A certificate given by such authority in respect of any such cotton or the contents of any such package or bale, shall be evidence of the facts stated therein, and shall, until the contrary is proved, be presumed to be correct.

3.

-F. Entry and inspection. - (1) The [State]

[This word was substituted for the word 'Provincial' by the Adaptation Order of 1950.]

Government may authorize any officer to enter and inspect, at any reasonable inspection time, any cotton ginning or pressing factory for the purpose of ascertaining whether there is any contravention therein of any of the provisions of this Act, or of any rule made thereunder, or of any of the conditions subject to which a licence has been granted in respect of such factory, and to seize and remove all things in respect of which an offence punishable under this Act appears to have been committed.

(2)

The owner or person in charge of the factory shall give every reasonable assistance to the inspecting officer in the performance of his duties under sub-section (1).

(3)

The owner or person in charge of the factory shall be permitted to be present during the inspection; and the things seized during such inspection shall be sealed in the prescribed manner."

5.

Substitution of new section 6 in Central Act XII of 1925.

- For section 6 of the said Act, the following section shall be substituted, namely:-

"6. Scales and weights to be used in factories. - (1) No scales or weights shall be kept or used in any cotton ginning or pressing factory other than scales or weights prescribed by the Central Government or notified by the [State]

[This word was substituted for the word 'Provincial' by the Adaptation Order of 1950.]

Government, in this behalf.

(2)

If, in any such factory, any scales or weights not so prescribed or notified are kept or used, the owner of the factory shall be punishable with fine which may extend to fifty rupees, or in case he has been convicted previously of any offence under this sub-section or sub-section (3), with fine which may extend to five hundred rupees.

(3)

The owner or person in charge of any such factory shall produce the scales and weights kept or used therein at the factory on demand by any person appointed by the [State]

[This word was substituted for the word 'Provincial' by the Adaptation Order of 1950.]

Government in this behalf; and if the owner or person in charge fails to do so, he shall be punishable with fine which may extend to fifty rupees; or in case he has been convicted previously of any offence under sub-section (2) or this sub-section, with fine which may extend to five hundred rupees."

6.

Amendment of section 7, Central Act XII of 1925.

- In section 7, sub-section (1) of the said Act, for the words and figures "for the purposes of section 4, 5," the words, figures and letters "for the purposes of sections 3-A, 3-B, 3-F, 4,5" shall be substituted.

7.

Amendment of section 9, Central Act XII of 1925.

- In section 9 of the said Act,-

(i)

in sub-section (1), the word "and" at the end of clause (a) shall be omitted and after clause (b), the following clause shall be inserted, namely:-

"(c) a kapas opener shall be installed and worked for the purpose of freeing the kapas, before ginning, from foreign substances other than cotton waste";

(ii)

in the same sub-section, the proviso shall be omitted;

(iii)

in sub-section (1-A), for clause (a), the following clause shall be substituted, namely:-

"(a) no structural alterations or additions shall be made so as to diminish the degree of compliance of the factory as a whole-

(i)

with the requirements set forth in clauses (a) and (b) of sub-section (1), if the alterations or additions, commenced after the 27th February 1939 and before the 31st March 1949, or

(ii)

with the requirements set forth in clauses (a), (b) and (c) of subsection (1), if the alterations or additions commenced on or after the 31st March 1949";

(iii)

in the same sub-section, in clause (b), for the words "last-mentioned date", the date "27th February 1939" shall be substituted;

(iv)

in the same sub-section, the proviso shall be omitted.

8.

Amendment of section 13, Central Act XII of 1925.

- In section 13 of the said Act, after clause (a), the following clauses shall be inserted, namely:-

"(a-1) the specification of what shall constitutes different varieties of cotton for the purposes of section 2, clause (a), section [3-D]

[The figure and letter '3-D' were substituted for the figure and letter '3-C' by section 5 of the Cotton Ginning and Pressing Factories (Tamil Nadu Amendment) 1953 (Tamil Nadu Act X of 1953).]

, clause (a), or other purposes;

(a-2) the postponement of the application of rules made under this Act, to cotton ginning or pressing factories in any specified area; and the exemption of factories in any specified area from the operation of such rules;

(a-3) the procedure for making a complaint under section 3-E and the investigation thereof;"

9.

Insertion of new sections 16 and 17 in Central Act XII of 1925.

- After section 15 of the said Act, the following sections shall be added, namely:-

"16. Penalty in cases not otherwise provided for. - Whoever contravenes any of the provisions of this Act or any rule made thereunder or any of the conditions subject to which a licence has been granted to him shall, if no other penalty is provided in this Act for such contravention, be punishable with fine which may extend to five hundred rupees, and in the case of a second or subsequent conviction, with fine which may extend to one thousand five hundred rupees.

17.

Compounding of offences, etc. - (1) Any officer empowered by the [State]

[This word was substituted for the word 'Provincial' by the Adaptation Order of 1950.]

Government in this behalf may accept from any person whose licence is liable to be suspended or cancelled under this Act, or who has committed or is reasonably suspected of having committed an offence punishable under this Act, a sum of money in lieu of such suspension or cancellation or by way of composition for the offence which has been or may have been committed.

(2)

The composition of an offence under sub-section (1) shall have the effect of an acquittal of the offender, and if he is in custody, he shall be set at liberty."

Related AI tags, queries and research notes

Translation